

26STCV09618 26STCV09618

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-21

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Case Number: 26STCV09618 Hearing Date: July 21, 2026 Dept: 512

HEARING DATE: Tues., July 21, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: York

v. City of Los Angeles, et al. COMP.

FILED: 03-25-26

CASE NUMBER: 26STCV09618

NOTICE:

OK

PROCEEDINGS: MOTION TO BE RELIEVED AS COUNSEL

MOVING PARTY: Counsel

Dag Law Firm, APC for Plaintiff Nancy Shavonna York

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Dag Law Firm, APC's Motion to be Relieved as Counsel for Plaintiff Nancy Shavonna York is GRANTED. However, corrected MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 5 days.

The Court continues the Case

Management Conference to September 1, 2026 at 8:30 a.m. given that the Notice of Continuance filed with the Court does not notify Plaintiff of the continued Case Management Conference hearing date set for July 21, 2026.

The Court's Ruling and Attorney's

relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

Plaintiff's Counsel is ordered to give notice.

OPPOSITION: None

filed as of June 30, 2026 ☐ Late ☒

None

REPLY: None

filed as of June 30, 2026 ☐

Late ☒ None

ANALYSIS:

I.

Background

On March 25, 2026, Plaintiff Nancy Shavonna York ("Plaintiff") filed the instant action against Defendants City of Los Angeles, Ebrahim Ajnassian, Carrie Ajnassian, and Rahmat Ajnassian, and Does 1-50, alleging causes of action for California Government Code section 835, Negligence, and Premises Liability.

On April 24, 2026, City of Los Angeles filed an Answer.

On May 18, 2026, Ebrahim Ajnassian, Carrie Ajnassian, and Rahmat Ajnassian filed an Answer to the Complaint and a Cross-Complaint against City of Los Angeles.

On June 10,
2026, Plaintiff's Counsel Dag Law Firm, APC ("Counsel") filed the instant
Motion to be Relieved as Counsel for Plaintiff (the "Motion").

On June 29,
2026, the Court continued the hearing on the Motion.

No Opposition to
the Motion has been filed.

II.
Legal
Standard

Code
of Civil Procedure section 284 states that "the attorney in an action...may be
changed at any time before or after judgment or final determination, as
follows: (1) Upon the consent of both client and attorney...; (2) Upon the order
of the court, upon the application of either client or attorney, after notice
from one to the other." (Code Civ. Proc., § 284; Cal. Rules of Court, rule
3.1362.) "The determination whether to
grant or deny a motion to withdraw as counsel lies within the sound discretion
of the trial court." (Manfredi & Levine v. Superior Court (1998) 66
Cal.App.4th 1128, 1133); see Lempert v. Superior Court (2003) 112
Cal.App.4th 1161, 1173.)

An application
to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice
of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal.
Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,
California Rules of Court, rule 3.1362 subsection (d) requires that the notice
of motion and motion, declaration, and proposed order be served on the client
and all other parties who have appeared in the case by personal service,
electronic service, or mail. If the notice is served by electronic service, it
must be accompanied by a declaration stating that the electronic service
address is the client's current electronic service address. (Cal. Rules of
Court, rule 3.1362, subd. (d)(2).) As used in this rule, "current" means:

“[T]he address
was confirmed within 30 days before the filing of the motion to be relieved.

Merely
demonstrating that the notice was sent to the client’s last known address and
was not returned or no electronic delivery failure message was received is not,
by itself, sufficient to demonstrate that the address is current.”

(Cal. Rules of
Court, rule 3.1362, subd. (d).)

III.
Discussion

On June 10,
2026, Counsel moved the Court to
be relieved as attorney of record for Plaintiff. (MC-051.) Counsel filed
MC-051, MC-052, and MC-053 Forms. (Cal. Rules of Court, rule 3.1362,
subds. (a), (c), (e).)

Counsel seeks to be relieved on the following
grounds:

There has been an irreparable
breakdown of the working relationship between counsel and the client, due to
client’s lack of cooperation and failure to communicate. This conflict has
recently arisen making it unreasonably difficult to continue representing the
client. The details of the disagreement and conflict cannot be disclosed as it
involves privileged communications. Little, if any, prejudice would befall the
Plaintiff, Nancy Shavonna York, if an Order is issued permitting my firm to
withdraw as attorneys of record in this case. All rights have been preserved
for the Plaintiff following the filing of the comprehensive Complaint.

(MC-052, ¶ 2.)

The Court is satisfied with Counsel’s
reasons for seeking to be relieved. (Cal. Rules of Professional Conduct, rule
1.16.) The Court also finds the Motion satisfactorily complies with California
Rules of Court, rule 3.1362.

However, MC-053 needs to be resubmitted with accurate dates.

Accordingly, Counsel's Motion is GRANTED. However, the corrected MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 5 days of this ruling providing all the accurate dates and future dates.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

IV.

Conclusion & Order

Accordingly, Counsel Dag Law Firm, APC's Motion to be Relieved as Counsel for Plaintiff Nancy Shavonna York is GRANTED. However, corrected MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 5 days.

The Court continues the Case Management Conference to September 1, 2026 at 8:30 a.m. given that the Notice of Continuance filed with the Court does not notify Plaintiff of the continued Case Management Conference hearing date set for July 21, 2026.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

Plaintiff's Counsel is to give notice.